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Submitter Information

Name: Anonymous Anonymous

General Comment

As an artist, I do not consent to my work being fed to machine learning programs so that they can “learn” and replicate aspects of my work for little to no money (I certainly don’t get paid for letting Art Station and Instagram scrape my art). And yet, almost every platform I have used in the past has eagerly adopted AI scraping and data training, and I have seen well-established artists such as the late Kim Jung Gi have their art replicated by AI, poorly. We are being exploited. Why should we create and feed the programs that would not exist without our creations when we have not agreed to do so? I personally have stopped sharing art on platforms such as Instagram, which openly states it will train its AI on any publicly available data, such as the drawings I post. How am I to make money, let alone a living, in circumstances like this? Any version of keeping my art out of machine learning comes in the form of hidden opt-out requests that may or may not be accepted. This is unacceptable. If the US wants to dominate the AI world and age we have ahead of us, the government needs to protect its people and their rights first, not the starry-eyed ambitions of private sector technology developers who are eager to take without consent. Essentially we are doing the work for them, and what do we have to show for it?

For creative works—visual arts, music and audio, writing, acting (the SAG-AFTRA strike of 2023 was in part to protect actors from AI editing and influencing their performances or appearances) there must be regulations in place to protect creatives. AI is cool in theory—but so far it has been largely unregulated, and letting companies do what they want with data and work we have created has only created dull and soulless results, for one (machines cannot experience the world and form art from emotional interpretation of such experiences), and is putting people out of jobs. Lionsgate has adopted AI for making films going forward, looking to alleviate costs of special effects and storyboarding crews, which are humans with livelihoods they can no longer entrust to that studio. It’s not a matter of “adjust find another job or different field” when companies increasingly adopt AI use by training algorithms on artists’ work so they don’t have to pay artists.

Ethical training issues aside, AI data centers consume absurd amounts of energy, and if the U.S. wants to harness the technology of AI they need to have sufficient measures in place to counter the power consumption. Using massive amounts of water to cool servers and potentially building literal nuclear power plants are not sustainable options (we don’t need more nuclear plants threatening to melt down or emanate radiation into the neighboring areas).

I don’t think regulations on private sector developers are unnecessary. We as a country need to focus on protecting what we have first before reaching out to obtain something we don’t have yet. When people and their right to the work they create are safeguarded from exploitation, and when we have energy and power systems in place that are robust enough to handle machine learning en masse, I believe we will be ready to lead the world in AI. Otherwise, we’re running with our shoelaces untied.